



United States
Attorney's Office
Middle District of Florida



Middle District Of Florida U.S. Attorney's Office Collects More Than \$47 Million In Civil And Criminal Actions In Fiscal Year 2024

Tuesday, March 4, 2025

For Immediate Release

U.S. Attorney's Office, Middle District of Florida

Tampa, FL — Acting U.S. Attorney Sara C. Sweeney announced today that the Middle District of Florida (MDFL) collected \$47,486,214 related to local criminal and civil matters in the fiscal year ending September 30, 2024 (FY 2024). Of this amount, \$16,429,786 was collected in criminal cases and \$31,056,428 was collected in civil actions.

The MDFL's Civil Division, led by Civil Chief Randy Harwell, recovered a total of \$104,533,923 on behalf of federal agencies and programs in affirmative civil enforcement cases during the last fiscal year. This amount has two components. In addition to its recoveries in local civil cases noted above, the District's Civil Division also joins forces with other U.S. Attorney's Offices and with the Department of Justice Civil Frauds Section to address fraud schemes and illegal practices extending beyond district boundaries. The MDFL's Civil Division recovered an additional \$73,477,495 in FY24 in these jointly handled cases.

“These strong recovery figures show a continued commitment by our office in the critical areas of criminal and civil enforcement,” said Acting United States Attorney Sara Sweeney. “Safeguarding the interests of crime victims, the American taxpayers, and vital public programs will always be a part of our district’s core mission.”

U.S. Attorneys' Offices, along with the Department's litigation divisions, are responsible for enforcing and collecting civil and criminal debts owed to the U.S. and criminal debts owed to federal crime victims. The law requires defendants to pay restitution to victims of certain federal crimes who have suffered a physical injury or financial loss. While restitution is paid to the victim, criminal fines and felony assessments are paid to the Department's Crime Victims Fund, which distributes the funds collected to federal and state victim compensation and victim assistance programs.

The MDL's Asset Recovery Division, led by Chief Laura Taylor, recovered a total of \$16,456,189. This amount has two components—criminal monetary penalties and forfeiture. First, in addition to the \$16,429,786 in criminal monetary penalties collected in cases prosecuted by the District, the Asset Recovery Division worked with other U.S. Attorney's Offices and components of the Department of Justice to collect an additional \$26,403 in criminal monetary penalties pursued jointly by these offices.

Additionally, the District's Asset Recovery Division, working with partner agencies, forfeited \$35,981,653 from criminal and civil asset forfeiture actions in FY 2024. For instance, in FY 2024, \$10,604,039 million forfeited in the MDL was returned to victims of the criminal offenses, and more than \$4 million was shared with federal, state, and local law enforcement agencies. Forfeited assets deposited into the Department of Justice Assets Forfeiture Fund are used to restore funds to crime victims and for a variety of law enforcement purposes.

Significant Affirmative Civil Enforcement Cases

United States ex rel. Jacob v. Walgreens Boots Alliance, Case no. 8:20-cv-858 (M.D. Fla.). This qui tam case alleged that between 2009 and 2020, Walgreens submitted false claims for payment to Medicare, Medicaid and other federal health care programs for prescriptions that it processed but that were never picked up by beneficiaries. Through this practice, Walgreens received tens of millions of dollars for prescriptions that it never actually provided to health care beneficiaries. Collaborating with the Dept. of Justice Civil Frauds Section and the United States Attorneys' Offices for the District of New Mexico and Eastern District of Texas, we resolved all of the allegations in the qui tam case for \$106.8 million.

Press release: <https://www.justice.gov/archives/opa/pr/walgreens-agrees-pay-1068m-resolve-allegations-it-billed-government-prescriptions-never>

United States v. Lubin, Case no. 8:21-cv-2231 (M.D. Fla.). This False Claims Act complaint was filed against Dr. Edward Lubin, who was an outlier prescriber of a powerful opioid medication called Subsys which is prescribed primarily for treatment of various oncology conditions. We alleged that Dr. Edward Lubin received kickbacks from the manufacturer of Subsys, Insys, Inc., through a bogus speaker program sponsored by Insys that paid Lubin hundreds of thousands of dollars to incentivize him to prescribe the potent medication. In October 2023, we settled with Dr. Lubin for \$1.5 million.

Press release: <https://www.justice.gov/usao-mdfl/pr/tampa-pain-management-physician-edward-lubin-agrees-pay-15-million-settle-false-claims>

U.S. ex rel. Loscalzo v. Bluestone Physician Services, et al., Case No. 2:20-cv-295 (M.D. Fla.). This *qui tam* case alleged that Bluestone, a geriatric health care provider for residents of assisted living facilities in Florida, Minnesota and Wisconsin, submitted false claims to the government by billing monthly medical visits that are either unnecessary or upcoded. In collaboration with the Department of Justice Civil Frauds section and the United States Attorney's Office in Minneapolis, Minnesota, we corroborated the allegations and on June 5, 2024, resolved the claims in the *qui tam* complaint for \$14.9 million, on an ability to pay basis.

Press release: <https://www.justice.gov/usao-mdfl/pr/chronic-disease-management-provider-pay-149m-resolve-alleged-false-claims>

Dan Hurt. Daniel Hurt owned and operated Fountain Health Services LLC, Verify Health, Landmark Diagnostics LLC, First Choice Laboratory LLC and Sonoran Desert Pathology Associates LLC, that we alleged submitted false claims to Medicare for cancer genomic (CGx) tests that were not medically necessary and that were procured through illegal kickbacks. From January 2019 to November 2021, Hurt allegedly conspired with telemarketing agents to solicit Medicare beneficiaries for "free" CGx tests; with telemedicine providers to "prescribe" CGx tests that were not medically necessary; with reference laboratories to conduct the CGx tests, and with billing laboratories and a hospital to submit claims for payment to Medicare. Mr. Hurt pled guilty to criminal healthcare fraud offenses and agreed on an ability to pay basis to settle the civil fraud claims for approximately \$27 million.

Press release: https://www.justice.gov/usao-sdfl/pr/florida-businessman-daniel-hurt-pay-over-27-million-medicare-fraud-connection-cancer?utm_medium=email&utm_source=govdelivery

United States v. Robert J. Remington, et al., Case no. 8:24-cv-511 (M.D. Fla.). This False Claims Act case was initiated by a referral from the Veterans Administration Inspector General concerning Jacksonville and Orlando franchises of New Horizons Computer Learning Center. These schools provide federally subsidized educational programs for veterans. The complaint alleged that both franchises violated subsidy program requirements concerning the percentage of student population that were entitled to receive the subsidies. We filed a complaint against the two schools in February 2024, and on July 10, 2024 reached an agreement that resolved all claims in return for \$1,350,000.

Press release: <https://www.justice.gov/usao-mdfl/pr/new-horizons-computer-learning-centers-tampa-and-orlando-resolve-post-911-gi-bill>

United States ex rel. GNGH2, Inc. v. Miles Partnership, LLC, Case No. 8:23-cv-649 (M.D. Fla.). In this *qui tam*, the relator alleged that Miles Partnership, LLC ("Miles Partnership") obtained a \$2 million second draw Paycheck Protection Program ("PPP") loan by failing to disclose that it was required to register under the Foreign Agent Registration Act ("FARA"), 22 U.S.C. § 611 *et seq.* Any entity required to register under FARA was ineligible for a second draw PPP loan. Based on various contracts it had with foreign tourism boards, including the Bermuda Tourism Authority, the relator alleged that Miles Partnership was required to register under FARA. On Sept. 17, 2024, we settled these claims for \$2,281,950.

Press release: <https://www.justice.gov/usao-mdfl/pr/travel-tourism-company-pays-2-2-million-resolve-civil-claims-regarding-funds-obtained>

H. Lee Moffitt Cancer and Research Center. A leading Tampa, Florida cancer research center disclosed issues to the Health and Human Services Inspector General concerning its bills to Medicare associated with clinical oncology trials. Specifically, Moffitt disclosed that it had billed federal healthcare programs for items and services provided as part of clinical trial research that should have been billed to non-government trial sponsors. The research center cooperated extensively with the United States Attorney's Office, Department of Justice Civil Frauds section, and HHS OIG, ultimately agreeing in January 2024, to pay \$19,564,743 to resolve all of the billing issues that it had disclosed.

Press release: <https://www.justice.gov/usao-mdfl/pr/florida-research-hospital-agrees-pay-more-195-million-resolve-liability-relating-self>

Baptist Health System A Jacksonville, Florida area hospital network voluntarily disclosed conduct to the Health and Human Services Inspector General that may have violated the federal Anti-Kickback statute. Specifically, Baptist Health disclosed that it had offered discounts to patients as an inducement to purchase or refer Baptist Health services that are reimbursed by federal health programs. Baptist Health cooperated with the government's investigation into these issues and agreed to resolve them in exchange for \$1.5 million.

Press release: <https://www.justice.gov/usao-mdfl/pr/florida-hospital-system-agrees-pay-15-million-resolve-liability-relating-self>

Updated March 4, 2025

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- FALSE CLAIMS ACT

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August 3, 2026

PRESS RELEASE

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Tampa, FL - New York ophthalmology practices Mark D. Fromer, P.C. doing business as Fromer Eye Centers and Floral Park Ophthalmology P.C. have agreed to pay a total of \$2.3...

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PRESS RELEASE

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July 30, 2026



Middle District of Florida

Tampa Office - (Headquarters):

